

INDEPENDENT CONTRACTOR AGREEMENT (DRIVER)

ChaufX Inc.

This Independent Contractor Agreement (the “**Agreement**”) is entered into and made effective as of the date of the last signature below (the “**Effective Date**”):

BETWEEN:

ChaufX Inc., a federal corporation carrying on business in the Province of Ontario as ChauFX,
having a principal place of business located at (hereinafter, “**ChaufX**”)

- and -

[Driver legal name]

[Driver address]

Phone: _____

Email: _____

HST/GST number (if applicable): _____

(hereinafter, the “**Contractor**” or “**Driver**”)

The above shall hereinafter be referred to singularly as “Party” or collectively as “Parties”.

WHEREAS ChauFX operates a technology platform that connects individuals seeking professional drivers with independent contractors who operate the customer's own vehicle (the “**Platform**”);

AND WHEREAS the Contractor wishes to provide driving and related assistance services to Customers matched through the Platform as an independent contractor, and ChauFX wishes to engage the Contractor on that basis;

NOW, THEREFORE, in consideration of the mutual covenants and agreements hereinafter set forth and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. SERVICES

- 1.1 Scope of Services.** The Contractor shall provide the driving and related assistance services set forth in Schedule “A” (the “**Services**”) through Customers matched on the Platform. The Contractor may not subcontract the Services or engage a substitute driver to perform the Services on the Contractor's behalf.
- 1.2 Discretion over method.** The Contractor shall determine the manner or means by which it performs the Services, subject to: (a) compliance with applicable law and highway traffic regulations; (b) the reasonable instructions of the Customer regarding destination, route

preferences, and stops; and (c) the platform safety standards described in this Agreement and in the ChauffX policies referenced in Schedule “A”.

- 1.3 Equipment.** The Contractor shall furnish, at its own expense, a smartphone, a valid mobile data plan, and any other equipment necessary to access the Driver-facing features of the Platform. The Contractor is not required to supply a vehicle; the Customer's Vehicle is used for each Booking.
- 1.4 Acceptance of Bookings.** The Contractor may accept or decline any Booking in its sole discretion. ChauffX does not require the Contractor to accept any minimum number of Bookings or to work any minimum number of hours. The Contractor is free to determine its own availability. The Contractor is free to provide services to third parties, including competitors of ChauffX, provided such activities do not interfere with the Contractor's obligations under this Agreement or create a conflict of interest in the performance of a specific Booking.
- 1.5 Platform policies.** In performing the Services, the Contractor shall comply with the ChauffX Driver Code of Conduct, Vehicle Condition Protocol, Incident Reporting Protocol, and other operational policies published on the Driver-facing portal of the Platform (collectively, the “**Platform Policies**”). ChauffX may amend the Platform Policies from time to time on reasonable notice. No Platform Policy or Platform Policy change shall amend the commercial terms of this Agreement (including compensation, taxes, set-off, liability, or termination) absent a written amendment signed by both Parties.

2. INDEPENDENT CONTRACTOR STATUS

- 2.1 Relationship of Parties.** The Contractor is and shall remain at all times an independent contractor and not an employee, dependent contractor, partner, joint venturer, agent, or fiduciary of ChauffX. Nothing in this Agreement shall be construed to create any such association. Neither Party has the authority to contract for or bind the other in any manner whatsoever.
- 2.2 Non-exclusive relationship.** The Contractor may provide services to third parties at any time, including to competitors of ChauffX, and may accept or decline Bookings freely.
- 2.3 No employee benefits.** The Contractor shall not be eligible to participate in any benefit or compensation plans offered by ChauffX to any employees, including, without limitation, any payments under the *Employment Standards Act, 2000* (Ontario) or analogous legislation of any province or territory in which the Contractor provides Services. For greater certainty, nothing in this Section limits any rights the Contractor may have as a "digital platform worker" under the *Digital Platform Workers' Rights Act, 2022* (Ontario) or analogous legislation, which rights are not capable of being waived.
- 2.4 No payroll deductions.** ChauffX shall have no obligation to withhold or remit any income tax, Canada Pension Plan contribution, Employment Insurance premium, Employer Health Tax, WSIB assessment, or any other federal or provincial tax or statutory contribution in respect of the Contractor. The Contractor is solely responsible for its own withholding, remittance, and registration obligations, and shall indemnify ChauffX against any order, penalty, interest, taxes, or contributions assessed against ChauffX by reason of the Contractor's failure or delay to comply with such obligations.

- 2.5 HST/GST registration.** The Contractor represents that it will monitor its GST/HST taxable supply threshold and, promptly upon reaching the threshold requiring registration (or earlier, voluntarily), register for HST or GST (or, in Quebec, QST), charge and remit such taxes as required by law, provide ChauffX with a valid registration number, and include applicable taxes on all invoices issued to ChauffX from the date of registration. The Contractor shall notify ChauffX in writing within five (5) business days of obtaining a registration number.
- 2.6 Reclassification indemnity.** If any governmental authority, regulatory body, court, or tribunal determines that the Contractor is (or was) an employee or dependent contractor of ChauffX, and such determination results directly from the Contractor's misrepresentation of its status, business, or qualifications in connection with this Agreement, the Contractor shall indemnify and hold harmless ChauffX from and against reasonable legal costs, penalties, and administrative expenses incurred by ChauffX directly as a result of that misrepresentation. This Section survives termination or expiry.
- 2.7 Digital Platform Workers' Rights Act disclosures.** ChauffX will provide the Contractor, at the time of onboarding and as required thereafter, with the written disclosures required under the *Digital Platform Workers' Rights Act, 2022* (Ontario) and any analogous legislation in other provinces where the Contractor performs Services, including a description of how pay is calculated, the recurring pay period, and the process for raising concerns or disputes. Such disclosures supplement but do not vary this Agreement.

3. ELIGIBILITY AND DRIVER QUALIFICATIONS

- 3.1 Qualifications.** The Contractor represents, warrants, and covenants that at all times during the Term, the Contractor shall:
- (a) hold a valid full-privilege provincial driver's licence (Class G in Ontario, or equivalent full-licence class in the Contractor's province of residence) in good standing, and not a graduated or probationary class;
 - (b) be at least 23 years of age, as required by ChauffX's platform insurance underwriting criteria;
 - (c) have a minimum of three (3) years of driving experience in Canada or an equivalent jurisdiction;
 - (d) maintain a clean driving abstract, with no demerits in excess of the threshold established in the Platform Policies from time to time;
 - (e) have no criminal conviction that would reasonably disqualify the Contractor from providing the Services, as assessed by ChauffX's background check provider;
 - (f) be legally authorized to work in Canada; and
 - (g) comply with all applicable federal, provincial, and municipal laws and regulations in performing the Services.
- 3.2 Ongoing notification.** The Contractor shall immediately notify ChauffX in writing of any: (a) suspension, revocation, or downgrade of the Contractor's driver's licence; (b) criminal charge, conviction, or guilty plea; (c) lapse, cancellation, or non-renewal of the Contractor's automobile insurance; or (d) any other event that may affect the Contractor's qualifications under Section 3.1.

- 3.3 Re-verification.** ChauffX may re-verify the Contractor's qualifications (including by conducting periodic background checks and requesting updated driving abstracts) during the Term, subject to the Contractor's continued consent under Schedule "B".

4. VEHICLE, INSURANCE, AND SAFETY REQUIREMENTS

- 4.1 Customer's Vehicle and Insurance.** The Contractor acknowledges that each Booking is performed in a Vehicle owned, leased, or lawfully possessed by the Customer, and that the Customer's automobile insurance is the primary insurance in respect of the operation of the Vehicle during the Booking. Before accepting a Booking, the Contractor shall satisfy itself, using the Platform's pre-trip Vehicle condition check, that the Vehicle is not visibly unsafe or uninsured. If the Contractor has a reasonable basis to believe that the Vehicle is unsafe, uninsured, unregistered, or otherwise non-compliant, the Contractor shall decline or discontinue the Booking and report the matter through the Platform.
- 4.2 Driver's personal auto insurance (minimum coverage).** The Contractor shall maintain throughout the Term, at its own expense, a personal automobile insurance policy on any motor vehicle the Contractor owns or regularly operates in the Contractor's personal capacity, with the following minimum coverages:
- (a) Third-party liability coverage of at least CAD \$2,000,000 per occurrence;
 - (b) Statutory accident benefits in accordance with the *Insurance Act* (Ontario) or analogous provincial legislation;
 - (c) Direct compensation property damage (DCPD) coverage; and
 - (d) Uninsured automobile coverage.
- 4.3 Non-owned auto endorsement (required).** The Contractor shall obtain and maintain a non-owned automobile endorsement (OPCF 27 in Ontario, or equivalent in other provinces) or a personal umbrella policy that responds to the operation of a third-party vehicle. The Contractor acknowledges that the Customer's primary coverage may not fully respond to all loss scenarios and that the Contractor's own coverage will provide a secondary layer of protection. Proof of such endorsement or umbrella policy shall be provided to ChauffX in accordance with Section 4.4.
- 4.4 Proof of coverage.** The Contractor shall provide a copy of its current automobile insurance policy declaration page (or pink slip and certificate of insurance) and its driving abstract to ChauffX at the time of onboarding and upon reasonable request thereafter. The Contractor shall notify ChauffX within forty-eight (48) hours of any lapse or material change to its coverage.
- 4.5 Safety, conduct, and compliance.** The Contractor shall perform the Services in a safe, professional, and courteous manner, and shall:
- (a) comply with all highway traffic laws and speed limits;
 - (b) not drive under the influence of alcohol, cannabis, or any impairing substance, or within the period before commencing a Booking specified in the Platform Policies;
 - (c) not use a handheld electronic device while operating the Vehicle; all device use for navigation must be through a device mounted in a fixed position and operated hands-free in compliance

with the *Highway Traffic Act* (Ontario) or equivalent legislation in the province where the Booking is performed;

- (d) be free from visible impairment and dressed in a manner that does not pose a safety concern or create a reasonable basis for a Customer complaint;
- (e) treat Customers and members of the public with courtesy, respect, and dignity, and refrain from any conduct that constitutes harassment, intimidation, or discrimination;
- (f) complete the pre-trip and post-trip Vehicle condition check for each Booking; and
- (g) Immediately report to ChauffX through the Platform any accident, collision, near-miss, injury, damage, or other safety incident, and cooperate with any subsequent investigation.

4.6 Senior assistance services. Where a Booking includes senior assistance services (helping a senior into or out of the Vehicle, accompanying the senior on errands, carrying bags), the Contractor shall: (a) provide only incidental physical assistance; (b) not perform any transfer that requires lifting beyond what the Contractor can safely manage without risk of injury; (c) not administer any medication; and (d) not provide any service that would ordinarily require a regulated health professional. The Contractor shall cease a senior assistance Booking and contact emergency services (911) if the senior appears to be in medical distress.

5. COMPENSATION AND PAYMENT

- 5.1 Fees.** In consideration of the Services, ChauffX shall pay the Contractor the fees set out in Schedule “A” (the “Fees”). The Fee structure, per-Booking rates, platform commission, and payment schedule are as set out in Schedule “A” and may be amended by ChauffX on written notice, subject to Section 1.5.
- 5.2 Platform commission.** ChauffX retains a platform commission from the Customer's payment before transferring the balance to the Contractor. The commission rate and method of calculation are set out in Schedule “A”.
- 5.3 Taxes.** The Contractor is solely responsible for the collection, reporting, and remittance of all taxes (including HST/GST/QST) in respect of the Services. ChauffX will not withhold or remit income tax, payroll tax, or any statutory contribution on the Contractor's behalf.
- 5.4 Expenses.** Except as expressly set out in Schedule “A” or pre-approved in writing by ChauffX, the Contractor bears all expenses of performing the Services, including mobile data, fuel for travel to and from a Booking, any parking fees the Contractor incurs outside the scope of a Booking, and any equipment and personal safety items. Reasonable Booking-related tolls, parking, and similar pass-through expenses may be passed through to the Customer in accordance with the Platform Policies.
- 5.5 Set-off.** ChauffX may set off any amounts owing from the Contractor (including indemnities, clawbacks for disputed Bookings, or amounts owing under this Agreement) against any amounts otherwise payable to the Contractor, on notice to the Contractor.
- 5.6 Gratuities.** Any gratuities paid by a Customer to the Contractor through the Platform are paid on behalf of the Customer to the Contractor and are passed through in full, less applicable payment processor fees, without deduction of platform commission.

6. MEMBERSHIP-TIER ACKNOWLEDGEMENTS

- 6.1 Acknowledgement of tiered service.** The Contractor acknowledges that ChauffX offers Customers different Membership Tiers (Basic, Plus, Concierge, and Corporate, or as amended from time to time) with differentiated service expectations, including but not limited to priority booking, access to specific Drivers, and service level commitments. The Contractor agrees to perform the Services in accordance with the service expectations applicable to the Booking, as displayed in the Platform for that Booking at the time of acceptance.
- 6.2 Variable Fees by tier.** The Contractor acknowledges that per-Booking rates, minimum Booking durations, and pass-through cost rules may vary by Membership Tier as set out in Schedule “A”, and that by accepting a Booking, the Contractor is accepting the Fee applicable to that Booking at that Membership Tier.
- 6.3 Corporate Bookings.** Where a Booking is made under a Corporate Membership, additional service requirements (including branding, logging, or expense-coding requirements specified by the Customer) may apply. ChauffX will disclose any such requirements in the Booking.

7. SERVICE CREDITS INVESTIGATION AND COOPERATION

- 7.1 Fault determination.** Where a Customer submits evidence to ChauffX that the Contractor was at fault for an accident or damage arising during a Booking, ChauffX may, at its sole discretion, make a fault determination for the purposes of issuing Service Credits to the Customer. The Contractor agrees to cooperate fully with ChauffX's fault investigation, including by providing a written statement, dash-cam footage (if available), and any other information reasonably requested by ChauffX within five (5) business days of the request.
- 7.2 No admission of liability.** A Service Credits fault determination by ChauffX is an internal platform decision for the purposes of issuing Customer credits only. It is not an admission of liability by the Contractor in any civil or criminal proceeding and does not create a cause of action in favour of ChauffX against the Contractor beyond the indemnities already set out in this Agreement.
- 7.3 Effect on Contractor engagement.** A Service Credits fault determination involving a serious safety incident may be considered by ChauffX, together with documented safety-related data, in deciding whether to suspend, restrict, or terminate the Contractor's access to the Platform in accordance with Section 14, and only following the process set out in that Section.

8. INTERACTION WITH PLATFORM INSURANCE

- 8.1 Platform Policy is secondary.** The Contractor acknowledges that any commercial general liability or umbrella policy maintained by ChauffX (the “Platform Policy”) is intended to apply secondary and in excess of: (a) the Customer's primary auto insurance; and (b) the Contractor's own automobile insurance. The Platform Policy is not intended to provide primary coverage to the Contractor and is not a substitute for the Contractor's obligation to maintain the coverage described in Section 4.

- 8.2 Exclusions.** The Contractor acknowledges that the Platform Policy will not apply to: (a) any claim within or below primary insurance limits; (b) first-party losses; (c) intentional, criminal, fraudulent, or grossly negligent acts by the Contractor; (d) operation of a Vehicle that is unregistered, materially unsafe, or not in compliance with law; (e) cargo or hazardous materials; (f) non-Booking activities, off-platform arrangements, or periods not booked through the Platform; or (g) punitive or exemplary damages to the extent uninsurable. All coverage is subject to the insurer's policy wording.

9. RENTAL VEHICLES

- 9.1 Authorization on rental contract.** Where a Booking involves a rental vehicle, the Contractor shall not commence the Booking until: (a) the Contractor has confirmed, through the Platform, that the Contractor is listed as an authorized driver on the rental contract; and (b) the Customer has supplied (and the Platform has recorded) the rental company, contract number, vehicle details, and rental period dates required by ChauffX.
- 9.2 Contractor discretion.** The Contractor is entitled to decline any Booking involving a rental vehicle if the Contractor has not been listed as an authorized driver or has reason to believe the rental contract does not permit operation by a third-party driver.

10. NO OFF-PLATFORM SOLICITATION OR CIRCUMVENTION

- 10.1 No off-platform services.** During the Term and for twelve (12) months following termination, the Contractor shall not, directly or indirectly, solicit, arrange, accept, or engage any Customer with whom the Contractor was matched through the Platform for any driving, transportation, or related assistance service outside the Platform, without ChauffX's prior written consent. This prohibition does not restrict the Contractor from providing services to other customers in the ordinary course of the Contractor's business (including services to customers of competing platforms), provided no such service involves a Customer introduced to the Contractor through ChauffX.
- 10.2 No circumvention of fees.** The Contractor shall not encourage, accept, or facilitate any arrangement whereby a Customer pays the Contractor directly for a Booking or a portion of a Booking outside the Platform's payment system, and shall promptly decline and report to ChauffX any such request or arrangement suggested by a Customer.
- 10.3 Remedies.** A breach of this Section is a material breach of this Agreement. ChauffX is entitled, without limiting any other remedy, to recover from the Contractor the full amount of the Fees and platform commission that would have been earned by ChauffX on the off-platform services, together with reasonable legal costs.

11. BACKGROUND CHECKS

- 11.1 Consent.** The Contractor's engagement under this Agreement is conditional on the Contractor's express written consent to background screening. The Contractor's consent, authorizations, and acknowledgements for the purposes of background screening are set out in Schedule "B" (Background Check Consent and Authorization), which forms part of this Agreement.

- 11.2 Refusal or withdrawal of consent.** If the Contractor does not consent to the background screening described in Schedule “B”, or subsequently withdraws that consent, ChauffX may decline to engage the Contractor or may terminate this Agreement in accordance with Section 14.
- 11.3 Adverse findings.** If ChauffX receives background check results that, in ChauffX's reasonable assessment, disqualify the Contractor from providing the Services, ChauffX will: (a) notify the Contractor of the adverse finding before any final engagement decision is made; (b) provide the Contractor with a reasonable opportunity to dispute the accuracy of the finding with the screening provider; and (c) make a final determination having regard to any evidence the Contractor provides.

12. CONFIDENTIALITY

- 12.1 Confidential Information.** The Contractor acknowledges that in the course of providing the Services the Contractor may access or receive information that is confidential and proprietary to ChauffX, including without limitation Customer contact information and booking history, Platform pricing and commission structures, Service Credits and insurance program details, Platform architecture and safety protocols, supplier and partner arrangements, marketing plans, and any other non-public information about ChauffX's business (collectively, the “Confidential Information”).
- 12.2 Obligations.** The Contractor shall treat all Confidential Information as strictly confidential and shall only use Confidential Information for the purpose of performing the Services. The Contractor shall not, during the Term or at any time after termination, disclose Confidential Information to any third party or use Confidential Information for the benefit of the Contractor or any other person, without ChauffX's prior written consent.
- 12.3 Personal information of Customers.** Without limiting the generality of Section 12.2, the Contractor shall treat all personal information of Customers (including names, addresses, telephone numbers, payment data, booking patterns, health or mobility information disclosed during senior assistance, and geolocation data) as confidential, and shall handle it in compliance with the Personal Information Protection and Electronic Documents Act (Canada) and any successor legislation thereto, applicable provincial privacy legislation (including Law 25 in Quebec), and the ChauffX Privacy Policy. The Contractor shall not retain, copy, photograph, or otherwise record any Customer personal information except as necessary to perform the Services.
- 12.4 Return or destruction.** Upon termination of this Agreement, or at any time upon ChauffX's written request, the Contractor shall promptly return or permanently delete all Confidential Information in the Contractor's possession or control and certify such return or destruction in writing.
- 12.5 Survival.** The obligations in this Section survive termination of this Agreement without limit of time.

13. INTELLECTUAL PROPERTY

- 13.1 Ownership of Platform IP.** All intellectual property in and to the Platform, including the ChauffX name, logo, trademarks (registered or unregistered), software, designs, content, and documentation, is and remains the exclusive property of ChauffX Inc. The Contractor acquires no right, title, or interest in or to any of the foregoing.
- 13.2 Deliverables.** Any work product, reports, photographs (other than of the Contractor personally), feedback, or other materials created or delivered by the Contractor in connection with the Services (the “Deliverables”) shall be owned by ChauffX. The Contractor irrevocably assigns to ChauffX all right, title, and interest in and to the Deliverables, including all intellectual property rights therein, and waives all moral rights in the Deliverables.
- 13.3 Publicity.** The Contractor shall not use ChauffX's name, logo, or marks in any public material without ChauffX's prior written consent.

14. REPRESENTATIONS AND WARRANTIES

- 14.1 Contractor representations.** The Contractor represents and warrants that:
- (a) The Contractor has the right to enter into this Agreement and to perform the Services and is not subject to any contractual or legal restriction that would prevent performance;
 - (b) The Contractor satisfies all of the eligibility and qualification requirements in Section 3 and will continue to do so throughout the Term;
 - (c) The information provided by the Contractor in connection with onboarding, background screening, and insurance verification is true, accurate, and complete;
 - (d) The Contractor will perform the Services in a professional and workmanlike manner consistent with recognized industry standards and in compliance with all applicable laws and regulations; and
 - (e) The Contractor has read, understands, and agrees to the ChauffX Privacy Policy and the Platform Policies.
- 14.2 ChauffX representations.** ChauffX represents and warrants that it has the right to enter into this Agreement and to engage the Contractor on the terms set out in this Agreement.

15. INDEMNIFICATION AND LIMITATION OF LIABILITY

- 15.1 Contractor indemnity.** The Contractor shall defend, indemnify, and hold harmless ChauffX and its owners, officers, directors, employees, agents, successors, and assigns from and against all losses, damages, liabilities, deficiencies, actions, judgments, interest, awards, penalties, fines, costs, or expenses of any kind (including reasonable legal fees) arising out of or resulting from: (a) bodily injury, death, or damage to property caused by the Contractor's acts or omissions in the performance of the Services; (b) any breach by the Contractor of this Agreement or of any Platform Policy; (c) any violation by the Contractor of applicable law, including any traffic or parking violation or regulatory infraction; (d) any claim by the Contractor's insurer or any third party arising from the Contractor's operation of a Vehicle; (e) any misclassification claim described in Section 2.6; and (f) any claim arising from the Contractor's handling of Customer personal information in breach of Section 12.

- 15.2 ChauffX's liability cap.** To the maximum extent permitted by law, ChauffX's aggregate liability to the Contractor under or in connection with this Agreement shall not exceed the Fees actually paid to the Contractor by ChauffX in the six (6) months preceding the event giving rise to the claim. This cap does not limit ChauffX's liability for non-payment of undisputed Fees. This cap does not apply to the Contractor's indemnity obligations under this Agreement.
- 15.3 No consequential damages.** Neither Party is liable to the other for any indirect, incidental, special, consequential, punitive, or exemplary damages, including loss of profits, revenue, or goodwill, arising out of or in connection with this Agreement, except to the extent arising from fraud, wilful misconduct, or the Contractor's indemnity obligations.

16. TERM AND TERMINATION

- 16.1 Term.** This Agreement commences on the Effective Date and continues on an indefinite basis until terminated in accordance with this Section 16.
- 16.2 Termination without cause.** Either Party may terminate this Agreement at any time, without cause, on fourteen (14) days' written notice to the other Party, or such longer period as may be required under the *Digital Platform Workers' Rights Act, 2022* (Ontario) or analogous legislation in the province where the Contractor primarily performs Services. ChauffX shall pay the Contractor for Services completed up to and including the effective date of termination.
- 16.3 Termination for cause.** ChauffX may suspend or terminate this Agreement immediately, with or without prior notice, for cause, including without limitation: (a) material breach of this Agreement by the Contractor; (b) any act or omission by the Contractor that creates a material and objectively established risk of serious harm to a Customer, another user, or a third party; (c) any loss, suspension, or revocation of the Contractor's driver's licence or insurance; (d) any criminal charge, conviction, or guilty plea that adversely affects the Contractor's qualifications under Section 3.1; (e) fraud, dishonesty, or off-platform solicitation in breach of Section 10; or (f) adverse background check findings in accordance with Section 11.3.
- 16.4 Effect of termination.** On termination of this Agreement, the Contractor shall: (a) cease accepting Bookings; (b) complete any Booking in progress in a safe and professional manner; (c) return or destroy all Confidential Information under Section 12.4; and (d) cease all use of ChauffX's name, logos, and marks.
- 16.5 Survival.** The following Sections survive termination or expiry: Sections 2 (Independent Contractor Status), 5.5 (Set-off), 10 (No Off-Platform Solicitation), 12 (Confidentiality), 13 (Intellectual Property), 15 (Indemnification and Limitation of Liability), 16 (this Section), 18 (Dispute Resolution), and 19 (General Provisions).

17. NON-SOLICITATION OF PERSONNEL

- 17.1** During the Term and for twelve (12) months after termination, the Contractor shall not directly or indirectly solicit to engage or induce any employee or other contractor of ChauffX to leave ChauffX's employment or engagement. A general advertisement or public job posting that is not specifically targeted at ChauffX personnel is not a breach of this Section.

18. DISPUTE RESOLUTION

- 18.1 Good-faith negotiation.** Before commencing any legal or arbitral proceeding, the Parties shall attempt to resolve any dispute arising out of or in connection with this Agreement by good-faith negotiation for at least thirty (30) days following written notice of the dispute by one Party to the other. This Section does not apply where a Party requires immediate injunctive or equitable relief to preserve a right.
- 18.2 Arbitration.** Any dispute that cannot be resolved by good-faith negotiation shall, subject to Section 18.3, be finally resolved by confidential arbitration under the ADR Institute of Canada Arbitration Rules, seated in Toronto, Ontario, before a single arbitrator. The language of the arbitration shall be English. Each Party shall bear its own legal fees and an equal share of the arbitrator's fees, subject to the arbitrator's discretion to award costs. The arbitrator's decision shall be final and binding, and judgment may be entered on the award in any court of competent jurisdiction.
- 18.3 Carve-outs.** The arbitration requirement in Section 18.2 does not apply to: (a) any claim by either Party for injunctive or equitable relief to protect confidentiality, intellectual property, or to prevent off-platform solicitation; (b) any claim that cannot be arbitrated under applicable law; (c) any claim relating to the Contractor's safety obligations where immediate court intervention is required; or (d) any claim falling within the jurisdiction of the Ontario Small Claims Court. Such claims may be commenced in the courts of the Province of Ontario in accordance with Section 19.6.

19. GENERAL PROVISIONS

- 19.1 Further assurances.** Each Party shall, on the reasonable request of the other Party and at the requesting Party's cost, promptly execute such documents and perform such acts as may be necessary to give full effect to this Agreement.
- 19.2 No authority to bind.** The Contractor has no authority to bind ChauffX or to make commitments on pricing, terms, or policy on behalf of ChauffX.
- 19.3 Assignment.** The Contractor may not assign any rights or obligations under this Agreement without ChauffX's prior written consent. ChauffX may assign its rights and obligations under this Agreement, including to a successor corporation on incorporation of the business or in connection with any merger, acquisition, financing, or sale of all or substantially all of its assets.
- 19.4 Amendments.** Any amendment to this Agreement must be in writing and signed by both Parties. Amendments to Schedule "A" (Services and Compensation) may be made by ChauffX on at least two weeks' prior written notice to the Contractor. Such amendments shall take effect on the date specified in the notice. During the notice period, the Contractor may decline Bookings without adverse consequence. The Contractor's continued acceptance of Bookings after the effective date of an amendment constitutes acceptance of the amendment.
- 19.5 Waiver.** No failure or delay in exercising any right under this Agreement shall operate as a waiver of that right. A waiver of any right on one occasion is not a waiver of that right on any subsequent occasion.

- 19.6 Governing law and forum.** This Agreement is governed by and construed in accordance with the laws of the Province of Ontario and the federal laws of Canada applicable therein. Subject to Section 18, each Party irrevocably submits to the exclusive jurisdiction of the courts of the Province of Ontario for any legal suit, action, or proceeding arising out of or based on this Agreement.
- 19.7 Notices.** Notices must be in writing and delivered by email with confirmation of transmission to the email address of the other Party set out in this Agreement, or by hand delivery or reputable courier to the other Party's address. Notices are deemed received on delivery (or, for email, on the business day sent if before 5:00 p.m. local time, otherwise the next business day).
- 19.8 Force majeure.** Neither Party is liable for delay or failure to perform due to events beyond its reasonable control (including acts of God, natural disasters, pandemics, war, civil unrest, labour disputes not involving the affected Party's workforce, government action, or internet or utility failures), provided the affected Party uses commercially reasonable efforts to mitigate and resumes performance promptly.
- 19.9 Severability.** If any provision of this Agreement is held invalid, illegal, or unenforceable, the invalidity shall not affect the remaining provisions, which shall continue in full force and effect, and the invalid provision shall be modified to the minimum extent necessary to render it valid while preserving the Parties' intent.
- 19.10 Language.** The Parties have expressly requested that this Agreement and all related documents be drafted in English. Les parties aux présentes ont expressément exigé que cette convention et tous les documents y afférents soient rédigés en anglais.
- 19.11 Counterparts and electronic signature.** This Agreement may be executed in counterparts (including by electronic signature and delivery), each of which is an original and all of which together constitute one instrument.
- 19.12 Entire agreement.** This Agreement, together with Schedules "A" and "B" and the Platform Policies referenced herein, constitutes the entire agreement between the Parties with respect to the subject matter and supersedes all prior or contemporaneous understandings, whether written or oral.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date

CHAUFEX INC.

CONTRACTOR

Per: _____

Name: _____

Date: _____

Date: _____

SCHEDULE "A"

SERVICES, FEES, AND COMPENSATION

1. Services

The Contractor shall provide driving and related assistance services, including the following categories (as offered by ChauffX Inc. from time to time):

- (a) Personal driving (Driver operates the Customer's Vehicle for a single journey or series of journeys).
- (b) Event driving (Driver operates the Customer's Vehicle to and from a social, business, or other event).
- (c) Designated driver services (Driver operates the Customer's Vehicle when the Customer is unable or unwilling to drive).
- (d) Senior assistance driving (Driver operates the Customer's Vehicle and provides non-personal-care accompaniment to seniors, including assistance into and out of the Vehicle, assistance with bags, and accompaniment at destinations, subject to Section 4.6 of the Agreement).
- (e) Wait-and-return driving (Driver operates the Customer's Vehicle, waits at a specified location, and returns the Customer).
- (f) Airport transfers (Driver operates the Customer's Vehicle to or from an airport).
- (g) Such other services as ChauffX may introduce on the Platform from time to time.

2. Fees

Per-Booking rates and minimum Booking durations are as published on the Driver-facing portal of the Platform from time to time. The placeholder rates in effect at onboarding are:

- (a) Personal driving: \$29 per hour, minimum 2-hour Booking.
- (b) Senior assistance driving: \$39 per hour, minimum 2-hour Booking.
- (c) Airport transfers (flat rate): \$29 within the defined service area; out-of-area surcharges as published.
- (d) Overnight and multi-day Bookings: \$29 per hour or flat rate, per published schedule.
- (e) Bookings between 10:00 pm-5:00 am \$39 per hour, minimum 2-hour Booking.

3. Platform Commission

ChauffX retains a platform commission of 30% of the gross Booking fee paid by the Customer (exclusive of taxes, gratuities, and pass-through expenses). The remainder, net of any set-off under Section 5.5 of the Agreement, is paid to the Contractor.

4. Payment Schedule

Contractor payouts are calculated on a weekly basis and paid to the Contractor's designated bank account or payment processor account within 3 business days of the end of each payout period. A detailed

statement of Bookings, Fees, commissions, set-offs, and payouts is available to the Contractor through the Driver-facing portal.

5. Disputes and clawbacks

Any dispute about the calculation of Fees or platform commission must be raised in writing within ninety (90) days after delivery of the applicable statement, failing which the statement is deemed final and binding, absent fraud or manifest error. ChauffX may claw back or set off Fees in accordance with Section 5.5 of the Agreement in respect of cancelled Bookings, fraud, Customer refunds, or Service Credits under Section 7 of the Agreement (if applicable).

SCHEDULE "B"

BACKGROUND CHECK CONSENT AND AUTHORIZATION

(Incorporated into and forming part of the Independent Contractor Agreement)

1. Purpose

ChaufX Inc. requires all prospective and existing Contractors to undergo a comprehensive background screening as a condition of onboarding and continued participation on the Platform. The purpose of this screening is to verify the accuracy of information provided by the Contractor, to assess the Contractor's suitability for providing the Services to members of the public, and to ensure the safety and trust of all Platform participants.

2. Scope of Background Screening

The background screening conducted by or on behalf of ChauFX may include, but is not limited to, the following checks:

- (a) Criminal record check, including records held by the Royal Canadian Mounted Police (RCMP) through the Canadian Police Information Centre (CPIC) and provincial police services.
- (b) Vulnerable Sector Check, where applicable for Services that involve seniors or other vulnerable persons and where required by applicable law or ChauFX policy.
- (c) Driving abstract and motor vehicle record, obtained through the applicable provincial Ministry of Transportation.
- (d) Identity verification, including confirmation of legal name, date of birth, and government-issued identification.
- (e) Right-to-work verification, confirming the Contractor's legal authorization to work in Canada.
- (f) Previous address and residence history verification, as required.

3. Consent and Authorization

By signing this Schedule "B", the Contractor freely and voluntarily provides the following consents and authorizations:

- 3.1 Authorization to conduct checks.** The Contractor authorizes ChauFX and its designated third-party screening providers to collect, use, and disclose the Contractor's personal information for the purpose of conducting the background checks described in Section 2, including by contacting government agencies, law enforcement bodies, provincial licensing authorities, and other relevant institutions to obtain records pertaining to the Contractor.
- 3.2 Authorization for verification.** The Contractor authorizes ChauFX to verify the authenticity of all identification documents and credentials submitted by the Contractor, including by contacting issuing authorities.

3.3 Authorization for ongoing monitoring. Where permitted by law, the Contractor authorizes ChauffX Inc to conduct periodic re-screenings during the Contractor's active engagement on the Platform, on reasonable advance notice, except where exigent circumstances apply.

4. Privacy and Use of Personal Information

Personal information collected under this Schedule “B” will be handled in accordance with the ChauffX Privacy Policy and applicable law, including:

- (g) Information will be used solely for the purpose of evaluating the Contractor's suitability to provide the Services and for ongoing platform integrity.
- (h) Information will not be sold, rented, or otherwise disclosed to unaffiliated third parties except as required by law or as necessary to conduct the screening.
- (i) Records will be retained only for as long as necessary for the identified purposes or as required by law.
- (j) The Contractor has the right to request access to, and correction of, the Contractor's personal information, in accordance with PIPEDA and applicable provincial privacy legislation.
- (k) All third-party screening partners are contractually bound to handle personal information in compliance with Canadian privacy law.

5. Sensitive Information Handling

The Contractor's Social Insurance Number (SIN), where collected, will be used exclusively for identity verification and driving abstract requests with provincial authorities, and will not be stored on the Platform beyond the period required to complete the screening. The Contractor shall provide the SIN only through the secure document submission portal designated by ChauffX and not via email, messaging applications, or other unsecured methods.

6. Contractor Rights and Dispute Resolution

- (l) The Contractor has the right to be informed of any adverse decision made on the basis of background check results, before such a decision takes final effect.
- (m) The Contractor has the right to request a copy of the background check report from the third-party screening provider.
- (n) If the Contractor disputes the accuracy of background check results, the Contractor may raise a dispute directly with the screening provider and is entitled to reasonable time to do so before ChauffX makes a final engagement decision.
- (o) The Contractor may withdraw this consent at any time by written notice to ChauffX; however, withdrawal of consent may be treated by ChauffX as a withdrawal from the Contractor's engagement under the Agreement.

7. Contractor Acknowledgement and Signature

By signing below, the Contractor confirms that the Contractor has read, understood, and voluntarily consents to the collection, use, and disclosure of the Contractor's personal information for the purposes of background screening as described in this Schedule “B”. The Contractor understands that this consent is a condition of the Contractor's engagement under the Agreement.

Contractor full legal name: _____

Signature: _____

Date (DD / MM / YYYY): _____

Place of signing: _____

End of Schedule "B"